SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1380 of 2023 (YEAR: 2023)

CORAM: SURYA KANT, DIPANKAR DATTA

Rabi Prakash
... Appellant(s) / Petitioner(s)
Versus
State of Odisha
... Respondent(s)

Acts Referred:	Narcotic Drugs and Psychotropic Substances Act, 1985, Constitution of India
Sections:	Section 37 NDPS, Article 21

JUDICIAL HEADNOTE & SUMMARY

Affirmed that fundamental right to a speedy trial under Article 21 applies to offences under special statutes including Section 37 NDPS.

RATIO DECIDENDI

The Court held that: Affirmed that fundamental right to a speedy trial under Article 21 applies to offences under special statutes including Section 37 NDPS. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Rabi Prakash v. State of Odisha (Criminal Appeal No. 1380 of 2023) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Narcotic Drugs and Psychotropic Substances Act, 1985, Constitution of India, particularly Section 37 NDPS, Article 21. Affirmed that fundamental right to a speedy trial under Article 21 applies to offences under special statutes including Section 37 NDPS.

OPERATIVE ORDER

ORDER: Decided